

26VECV03542 26VECV03542

County: los-angeles

Division: Civil Law and Motion

Department: NWI

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Case Number: 26VECV03542 Hearing Date: August 26, 2026 Dept: NWI

26VECV03542

MARIBEL RIVAS vs.15116 PARTHENIA STREET INC., et

al.,

August

26, 2026 at 8:30 a.m.

Van

Nuys Courthouse East, Dept. I

BACKGROUND

This is a landlord-tenant action arising out of the

collection of rent for a property subject to the Los Angeles Rent Stabilization

Ordinance ("LARSO"). On June 17, 2026, Plaintiff Maribel Rivas ("Plaintiff")

filed the operative Complaint against Defendants 15116 Parthenia Street Inc.

("Parthenia") and DOES 1 through 10 (collectively, "Defendants"), alleging

causes of action for: (1) Violation of Los Angeles Municipal Code ("LAMC") §§

151.04, 151.10 and (2) Declaratory Relief.

On July 8, 2026, Parthenia filed the instant Demurrer with

Motion to Strike the Complaint. On August 13, 2026, Plaintiff filed an

Opposition.

I.

DISCUSSION

As a preliminary matter, Parthenia's counsel of record,

Alberto J. Campain's declaration in support of the demurrer and motion to

strike indicates, inter alia, that "On July 1, 2026, I

transmitted a correspondence by email to Plaintiff's counsel in a good faith

attempt to meet and confer regarding objections that would be raised by a

demurrer and a motion to strike portions of the complaint." (Campain Decl., ¶12, Ex. A.)

Prior to filing a

demurrer and motion to strike, the demurring/moving party is required to meet

and confer in person, by telephone, or by videoconference with the party who

filed the pleading for the purposes of determining whether an agreement can be

reached through a filing of an amended pleading that would resolve the

objections to be raised in the demurrer and motion to strike. (Code Civ. Proc.,

§ 430.41; Code Civ. Proc., § 435.5.)

As shown above,

the parties did not meet and confer in-person, by telephone, or by videoconference. Although Mr. Campaign's meet and confer email stated: "I am available to meet and confer telephonically if you desire. If we do not hear from you, we will assume that you do not intend to amend the Complaint and we will proceed with the filing of a motion to strike and demurrer," Mr. Campaign does not attest to any actual attempt to call Plaintiff's counsel to meet and confer prior to filing the demurrer and motion to strike. The Court finds this meet and confer effort fails to conform with the statute.

II.

CONCLUSION

Based on the foregoing, the Court continues the hearing on Defendant 15116 Parthenia Street Inc.'s Demurrer and Motion to Strike to October 29, 2026 at 8:30 a.m. in Dept. I at Van Nuys East Courthouse.

The parties are ordered to meet and confer either in person, by telephone, or by video conference within 10 days of the date of this order. If the parties are unable to informally resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Defendant 15116 Parthenia Street Inc. is to thereafter file and serve a declaration setting forth meet and confer efforts in

compliance with Code of Civil Procedure Sections

430.41 and 435.5 within 5 court days of the continued

hearing.

Defendant

15116 Parthenia Street Inc. to give notice.